

1 STATE OF OKLAHOMA

2 2nd Session of the 60th Legislature (2026)

3 COMMITTEE SUBSTITUTE
4 FOR ENGROSSED
5 HOUSE BILL 1225

By: West (Kevin) and Woolley of
the House

and

Bergstrom of the Senate

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9 COMMITTEE SUBSTITUTE

10 An Act relating to vital records; providing findings
11 and declarations; amending 63 O.S. 2021, Sections 1-
12 311, as last amended by Section 2, Chapter 58, O.S.L.
2025, 1-313, as amended by Section 2, Chapter 87,
13 O.S.L. 2022, 1-316, as amended by Section 3, Chapter
87, O.S.L. 2022, and 1-321, as last amended by
14 Section 10, Chapter 58, O.S.L. 2025 (63 O.S. Supp.
2025, Sections 1-311, 1-313, 1-316, and 1-321), which
15 relate to certificates of birth; updating statutory
language; requiring certificates of birth to contain
16 accurate biological sex designations; clarifying
certain requirement and prohibitions; updating
17 statutory reference; providing for noncodification;
and declaring an emergency.

18
19 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

20 SECTION 1. NEW LAW A new section of law not to be
21 codified in the Oklahoma Statutes reads as follows:

22 The Legislature finds and declares that it is enacting the
23 following statutory changes "to clarify existing law, as opposed to
24 altering its substance" per Purcell v. Santa Fe Minerals, Inc., 1998

1 OK 45, 961 P.2d 188. The Legislature further finds and declares
2 that these clarifications are important to protect, among other
3 things, the integrity and accuracy of vital statistics records. In
4 particular, the Legislature finds that private parties have been
5 wrongly asserting in court that the Legislature's previous law
6 clarifying Oklahoma birth certificate statutes, Senate Bill No. 1100
7 of the 2nd Session of the 58th Oklahoma Legislature, constituted an
8 acquiescence to the unauthorized practice of changing the biological
9 sex designation on birth certificates to represent a person's gender
10 identity. The Legislature finds and declares that Senate Bill No.
11 1100 of the 2nd Session of the 58th Oklahoma Legislature did nothing
12 of the sort; rather, it was intended to clarify, in response to
13 revelations about an unsanctioned settlement over a nonbinary
14 designation, that Oklahoma birth certificates are supposed to
15 contain a biological sex designation only, and that this designation
16 should not be altered to display gender identity, a nonbinary
17 designation, or anything other than a male or female designation.

18 SECTION 2. AMENDATORY 63 O.S. 2021, Section 1-311, as
19 last amended by Section 2, Chapter 58, O.S.L. 2025 (63 O.S. Supp.
20 2025, Section 1-311), is amended to read as follows:

21 Section 1-311. A. A certificate of birth for each live birth
22 which occurs in this state shall be filed with the State
23 Commissioner of Health within seven (7) days after the birth.
24

1 B. When a birth occurs in an institution, the person in charge
2 of the institution or a designated representative shall obtain the
3 personal data, prepare the certificate and secure the signatures
4 required by the certificate. The physician in attendance shall
5 certify to the facts of birth and provide the medical information
6 required by the certificate within five (5) days after the birth.

7 C. When a birth occurs outside an institution, the certificate
8 shall be prepared and filed by one of the following in the indicated
9 order of priority:

10 1. The physician in attendance at or immediately after the
11 birth;

12 2. Any other person in attendance at or immediately after the
13 birth; or

14 3. The father, the mother or, in the absence or inability of
15 the father or mother, the person in charge of the premises where the
16 birth occurred and present at the birth.

17 D. 1. If the mother was married at the time of birth, or
18 married at any time during the three hundred (300) calendar days
19 before the birth, the name of the husband shall be entered on the
20 certificate as the father of the child unless paternity has been
21 determined otherwise by a court of competent jurisdiction or a
22 husband's denial of paternity form has been filed along with an
23 affidavit acknowledging paternity, in which case the name of the
24 father as determined by the court or affidavit acknowledging

1 paternity shall be entered. If there is a refusal to identify
2 paternity on the birth certificate, the State Department of Health
3 is authorized to register a birth certificate as such.

4 2. If the mother was not married at the time of birth, nor
5 married at any time during the three hundred (300) calendar days
6 before the birth, the name of the father shall be entered on the
7 certificate of birth only if:

- 8 a. a determination of paternity has been made by an
9 administrative action through the Department of Human
10 Services or a court of competent jurisdiction, in
11 which case the name of the father shall be entered, or
- 12 b. the mother and father have agreed as to the biological
13 paternity of the child and signed an acknowledgment of
14 paternity pursuant to Section 1-311.3 of this title,
15 or substantially similar affidavit from another state
16 and filed it with the State Commissioner of Health.

17 This shall give the unmarried mother and biological father equal
18 rights and obligations to the child. A child whose parentage has
19 been determined as set forth shall be treated as a child of parents
20 who were married at the time of the birth.

21 E. Either of the parents of the child shall sign the
22 certificate of live birth worksheet to attest to the accuracy of the
23 personal data entered thereon, in time to permit its filing within
24 the seven (7) days prescribed in this section.

1 F. If the live birth results from a process in which the
2 delivering mother was carrying the child of another woman by way of
3 a prearranged legal contract, the original birth certificate shall
4 be filed with the personal information of the woman who delivered
5 the child. A new birth certificate will be placed on file once the
6 Department receives both a court order and a completed form
7 prescribed by the Department which identifies the various parties
8 and documents the personal information of the intended parents
9 necessary to complete the new birth certificate.

10 G. ~~Beginning on April 25, 2022, the biological sex designation~~
11 ~~on a~~ Every certificate of birth issued under this section shall ~~be~~
12 contain an accurate biological sex designation of either male or
13 female and, as identified at the time of birth. The biological sex
14 designation shall not ~~be~~ display gender identity, a nonbinary
15 designation, or any symbol representing a nonbinary designation
16 including, but not limited to, the letter "X".

17 SECTION 3. AMENDATORY 63 O.S. 2021, Section 1-313, as
18 amended by Section 2, Chapter 87, O.S.L. 2022 (63 O.S. Supp. 2025,
19 Section 1-313), is amended to read as follows:

20 Section 1-313. A. When the birth of a person born in this
21 state has not been registered, a certificate may be filed in
22 accordance with regulations of the State Commissioner of Health.
23 Such certificate shall be registered subject to such evidentiary
24

1 requirements as the Commissioner shall by regulation prescribe, to
2 substantiate the alleged facts of birth.

3 B. Certificates of birth registered one (1) year or more after
4 the date of occurrence shall be marked "delayed" and show on their
5 face the date of the delayed registration.

6 C. A summary statement of the evidence submitted in support of
7 the delayed registration shall be endorsed on the certificate.

8 D. When an applicant does not submit the minimum documentation
9 required in the regulations for delayed registration, or when the
10 State Commissioner of Health finds reason to question the validity
11 or adequacy of the documentary evidence, the Commissioner shall not
12 register the delayed certificate and shall advise the applicant of
13 the reasons for his or her action.

14 E. ~~Beginning on the effective date of this act, the biological~~
15 ~~sex designation on a~~ Every certificate of birth issued under this
16 section shall ~~be~~ contain an accurate biological sex designation of
17 either male or female and, as identified at the time of birth. The
18 biological sex designation shall not ~~be~~ display gender identity, a
19 nonbinary designation, or any symbol representing a nonbinary
20 designation including, but not limited to, the letter "X".

21 SECTION 4. AMENDATORY 63 O.S. 2021, Section 1-316, as
22 amended by Section 3, Chapter 87, O.S.L. 2022 (63 O.S. Supp. 2025,
23 Section 1-316), is amended to read as follows:
24

1 Section 1-316. A. The State Commissioner of Health shall
2 establish a new certificate of birth for a person born in this
3 state, when the Commissioner receives the following:

4 1. An adoption certificate as provided in the Oklahoma Adoption
5 Code, or a certified copy of the decree of adoption together with
6 the information necessary to identify the original certificate of
7 birth and to establish a new certificate of birth; except that a new
8 certificate of birth shall not be established if so requested by the
9 court decreeing the adoption, the adoptive parents or the adopted
10 person; and

11 2. A request that a new certificate be established and such
12 evidence as required by regulation proving that such person has been
13 legitimated, or that a court of competent jurisdiction has
14 determined the paternity of such a person.

15 B. When a new certificate of birth is established, the actual
16 place and date of birth shall be shown. It shall be substituted for
17 the original certificate of birth:

18 1. Thereafter, the original certificate and the evidence of
19 adoption, paternity or legitimation shall not be amended, nor shall
20 it be subject to inspection except upon order of a court of
21 competent jurisdiction or as otherwise specifically provided by law;
22 and

23 2. Upon receipt of notice of annulment of adoption, the
24 original certificate of birth shall be restored to its place in the

1 files and the new certificate and evidence shall not be subject to
2 inspection except upon order of a court of competent jurisdiction.
3 The original certificate shall be restored and may be amended in
4 accordance with Section 1-321 of this title.

5 C. ~~Beginning on the effective date of this act, the biological~~
6 ~~sex designation on a~~ Every new certificate of birth issued under
7 this section shall ~~be~~ contain an accurate biological sex designation
8 of either male or female and, as identified at the time of birth.
9 The biological sex designation shall not be display gender identity,
10 a nonbinary designation, or any symbol representing a nonbinary
11 designation including, but not limited to, the letter "X".

12 SECTION 5. AMENDATORY 63 O.S. 2021, Section 1-321, as
13 last amended by Section 10, Chapter 58, O.S.L. 2025 (63 O.S. Supp.
14 2025, Section 1-321), is amended to read as follows:

15 Section 1-321. A. A certificate or record registered under
16 this article may be amended only in accordance with this article and
17 regulations thereunder adopted by the State Commissioner of Health
18 to protect the integrity and accuracy of vital statistics records.

19 B. A certificate that is amended under this section shall be
20 marked "amended", except as provided in subsection ~~D~~ E of this
21 section. The date of amendment and a summary description of the
22 evidence submitted in support of the amendment shall be endorsed on
23 or made a part of the record.

1 The Commissioner shall prescribe by regulation the conditions under
2 which additions or minor corrections shall be made to birth
3 certificates within one (1) year after the date of birth without the
4 certificate being considered as amended. Certificates shall be
5 marked as "amended" for minor corrections made one (1) year after
6 the date of birth.

7 C. Upon receipt of a certified copy of a court order, from a
8 court of competent jurisdiction, changing the name of a person born
9 in this state and upon request of such person or his or her parent,
10 guardian or legal representative, the State Commissioner of Health
11 shall amend the certificate of birth to reflect the new name.

12 D. When a child is born out of wedlock, the Commissioner shall
13 amend a certificate of birth to show paternity, if paternity is not
14 currently shown on the birth certificate, in the following
15 situations:

16 1. Upon request and receipt of a sworn acknowledgment of
17 paternity of a child born out of wedlock signed by both parents;

18 2. Upon receipt of a certified copy of a court order
19 adjudicating paternity; or

20 3. Upon receipt of an electronic record from the Department of
21 Human Services indicating that an acknowledgment of paternity has
22 been signed by both parents or a court order adjudicating paternity.

23 E. For a child born out of wedlock, the Commissioner shall also
24 change the surname of the child on the certificate:

1 1. To the specified surname upon receipt of acknowledgment of
2 paternity signed by both parents, upon receipt of a certified copy
3 of a court order directing such name be changed or upon receipt of
4 an electronic record from the Department of Human Services
5 indicating that an acknowledgment of paternity has been signed by
6 both parents or a court order directs such name change. Such
7 certificate amended pursuant to this subsection shall not be marked
8 "amended"; or

9 2. To the surname of the mother on the birth certificate in the
10 event the acknowledgment of paternity is rescinded.

11 F. The Commissioner shall have the power and duty to promulgate
12 rules for situations in which the Department receives false
13 information regarding the identity of a parent.

14 G. If within one (1) year of the initial issuance of a
15 certificate of death, a funeral director, or a person acting as
16 such, requests a correction to any portion of the death record
17 except the information relating to the medical certification
18 portion, due to a scrivener's error, misspelling or other correction
19 of information, the State Commissioner of Health, through the State
20 Registrar of Vital Statistics, shall amend the record, provided the
21 request is made in writing or through an electronic system and is
22 accompanied by documentation disclosing the correct information or
23 by a sworn statement of the funeral director. The funeral director,
24 or person acting as such, shall be responsible for any and all

1 amendment fees that may be imposed by the State Commissioner of
2 Health for the correction. Up to ten certified copies containing
3 the erroneous original information may be exchanged for certified
4 copies containing the corrected information at no additional cost.

5 H. ~~Beginning April 26, 2022, the biological sex designation on~~
6 ~~a~~ Every certificate of birth amended under this section shall ~~be~~
7 contain an accurate biological sex designation of either male or
8 female ~~and shall not be,~~ as identified at the time of birth. The
9 biological sex designation shall not be amended to display gender
10 identity, a nonbinary designation, or any symbol representing a
11 nonbinary designation including but not limited to the letter "X".

12 SECTION 6. It being immediately necessary for the preservation
13 of the public peace, health or safety, an emergency is hereby
14 declared to exist, by reason whereof this act shall take effect and
15 be in full force from and after its passage and approval.

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